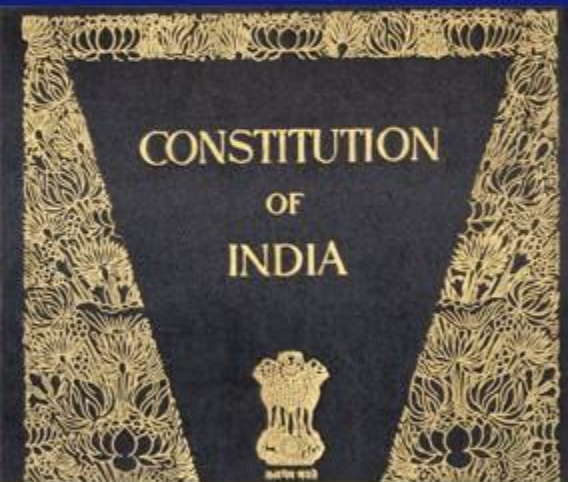


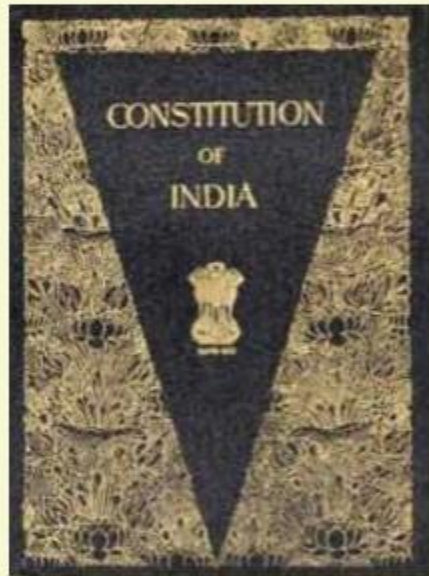
INDIAN POLITY



MODULE - 18

UNION & ITS TERRITORY

- ARTICLE 1- UNION OF STATES
- INDIA- FEDERAL OR UNITARY?



**UNION AND ITS
TERRITORY**

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES

Articles 1 to 4 under Part-I of the Constitution deal with the Union and its territory.



1

Article 1 describes India, that is Bharat as a “Union of States” rather than a “Federation of States”.

2

This provision deals with two things : one, name of the country and two, type of polity.

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES



3 There was no unanimity in the Constituent Assembly with regard to the name of the country.

4 Some members suggested the traditional name (Bharat) while others advocated the modern name (India).

5 Hence, the Constituent Assembly had to adopt a mix of both -- 'India, that is, Bharat'.

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES

- 6 Secondly, the country is described as “Union” although its constitution is federal in structure.



- 7 According to Dr.B.R.Ambedkar, the phrase ‘Union of states’ has been preferred to ‘Federation of States’ for two reasons:
- 1) The Indian Federation is not the result of an agreement among the States like the American Federation
 - 2) The States have no right to secede from the federation

- 8 The federation is an **union because it is indestructible**. The country is an integral whole and divided into different States only for the convenience of administration.

INDIAN POLITY

UNION AND ITS TERRITORY

THE CLASH BETWEEN THE TERMS “FEDERATION” AND “UNION”



- 1 Article 1 of our Constitution says **India** that is **Bharat** shall be **Union of States**.
- 2 Dr. Ambedkar stated that although the Committee had used the term Union because of certain advantages, the country of India still remains to be in federal structure.
- 3 In this particular module, let us analyse how federal is Indian Constitution.

THE CLASH BETWEEN THE TERMS “FEDERATION” AND “UNION”

DIFFERENT TYPES OF FEDERAL CONSTITUTIONS IN THE MODERN WORLD

COMPARISON OF FEDERALISM OF INDIA AND USA



- 1 The basic thing about federalism is that there is **no agreed definition of a federal State**.
- 2 The other difficulty is that **it is habitual with scholars to say that the model of the United States** is the correct model of the federal constitution of the whole world.
- 3 It is also said that any other system that does not confirm to the US Nomenclature of Federation should not be considered as a federal country.

THE CLASH BETWEEN THE TERMS “FEDERATION” AND “UNION”

DIFFERENT TYPES OF FEDERAL CONSTITUTIONS IN THE MODERN WORLD

- 4 But, numerous countries in the world have adopted Constitutions having federal features and **if strict “historical standards” of the United States be applied to all these Constitutions, few will stand the test of federalism.**
- 5 Thus, the only alternative to test the federalism of one particular country is to analyze the question of federalism with a liberal attitude.
- 6 The reality is that countries in the world are departing more & more from pure type of either unitary or a federal system.
- 7 The question whether a State is Federal or Unitary is **one of the degrees/ extent of federalism and the answer will depend upon how many federal features our country possesses.**
- 8 Thus, it can be said that, in recent times, **no country can be purely unitary or federal, but, it may have more degrees of one character when compared to another.**

INDIAN POLITY

UNION AND ITS TERRITORY

INDIAN CONSTITUTION - FEDERAL OR UNITARY?



- 1 The Constitutional system of India is basically federal, but of course with striking unitary features.
- 2 In order to come to this conclusion we have to formulate **certain minimal features of federal system**.
- 3 A more basic federal system involves the following essential features:
 - 1) Dual Government
 - 2) Distribution of Powers
 - 3) Supremacy of the Constitution
 - 4) Authority of Courts

INDIAN CONSTITUTION - FEDERAL OR UNITARY?

1

DUAL GOVERNMENT



**FEDERATION- DELEGATION OF POWERS BY
FEDERAL GOVERNMENT TO STATES**

1

While in unitary State there is only one Government, which is the National Government, **in federal State there are two Governments** – The National and the State Governments.

2

In the **case of a unitary state**, there can be **sub divisions of powers**. However, it is possible to exercise these powers only if the National Government/ Federal Government **delegates from time to time the powers to the concerned states.**

INDIAN CONSTITUTION - FEDERAL OR UNITARY?

1

DUAL GOVERNMENT

3 In such a unitary government, at any point of time, the Central Government can revoke these delegated powers also.



4 A federal system, on the other hand, is the fusion of several States into single State in regard to matters affecting common interest.

5 In regard to other matters, where the interest of the individual States are concerned they will enjoy the considerable autonomy.

6 Here the component States are the agents of the federal Government.

7 Also both Federal Government and State Government draw their authority from the same source- the Constitution of the land.

INDIAN POLITY

INDIAN CONSTITUTION - FEDERAL OR UNITARY?

2

DISTRIBUTION OF POWERS

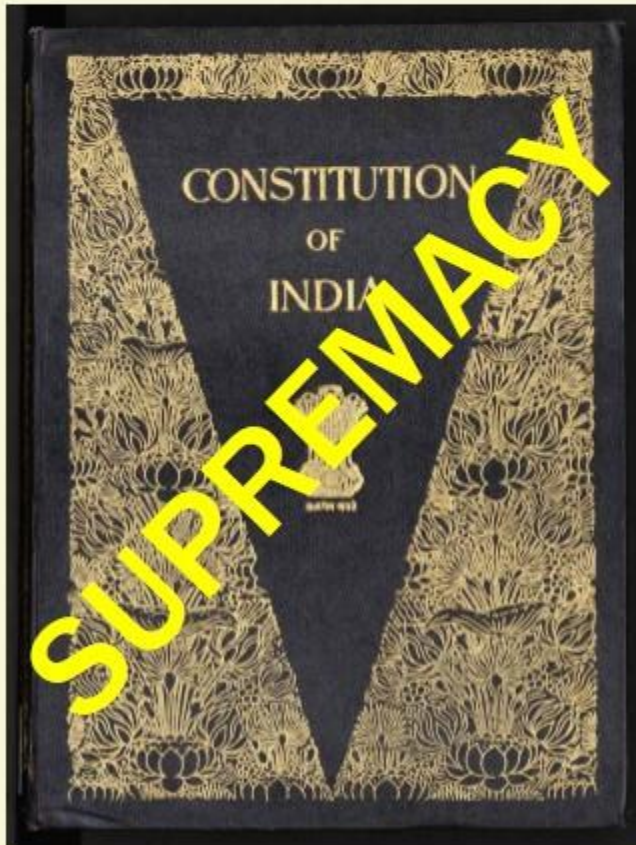


1

In a Federal State, the basic objective and basic relationship between the federal Government and the States involves a division of authority or a method of distribution of powers that exist between them.

INDIAN CONSTITUTION - FEDERAL OR UNITARY?

3 SUPREMACY OF THE CONSTITUTION



- 1 A Federal State derives its existence from the Constitution by which it is created.
- 2 Every power- executive, legislative or judicial- whether it belongs to the federation or to the component States is subordinate to or controlled by the Constitution

INDIAN CONSTITUTION - FEDERAL OR UNITARY?

4

AUTHORITY OF COURTS



1

In a Federal State, the legal Supremacy of the Constitution is essential to the existence of the federal system.

2

It is essential to maintain the division of powers between the branches of the Government and also between the federal and State Governments themselves.

3

This is secured by vesting in the court final power to interpret the Constitution and nullify any action taken by any branch of the Government or their different organs when they violate the provisions of the Constitution.

INDIAN POLITY

UNION AND ITS TERRITORY

INDIAN CONSTITUTION - FEDERAL OR UNITARY?



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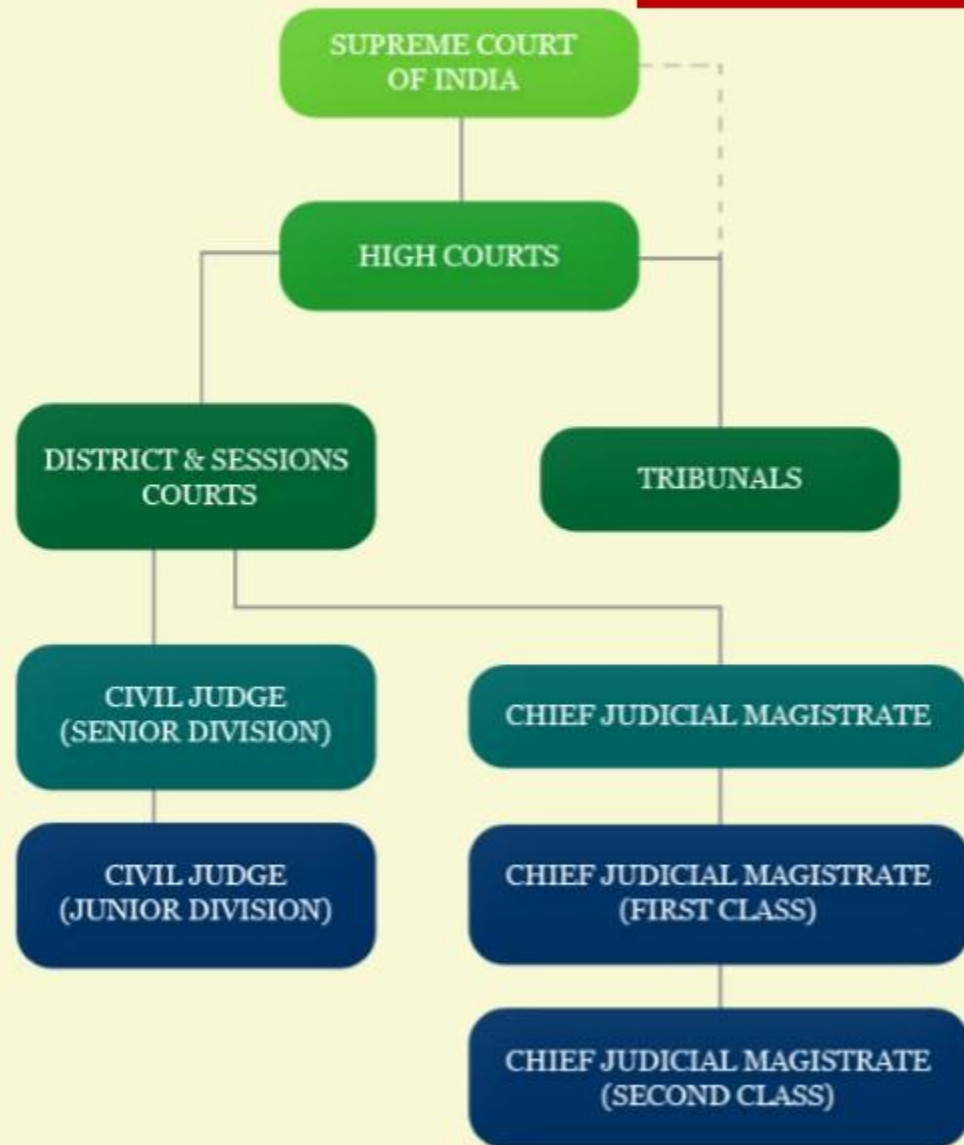
THE FEDERAL CASE OF INDIA

1 The Indian Constitution is basically federal in form.

2 Most of the essential qualities of the federal Government which was mentioned above has been a part of the functioning of the Indian Constitution.

3 Indian constitution is marked by traditional characteristics of a federal system namely--
Supremacy of the Constitution, division of the power between the Union and the States, the existence of a dual government, the existence of independent judiciary-- not much pains need to be taken to demonstrate that the political system introduced by our Constitution possesses all the aforesaid essentials of a federal polity.

THE FEDERAL CASE OF INDIA



4 The Constitution is the Supreme organic law of our land and both the Union and the State Governments abide by the Constitution.

5 There is a division of legislative and administrative powers between the Union and the State Governments.

6 The Supreme Court stands at the head of the judiciary and it eventually guard this distribution of powers invalidating any action, which violates the limits imposed by the Constitution.

It is because of these basic federal features, it has been declared that our Constitution is a quasi-federal Constitution

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